

Sher Mohammad v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 18 May 2022 · WRIT-C No. 17423 of 2021 · WRIT - C No. - 17423 of 2021 · **Writ disposed; petitioner relegated to Para 6.8; coercive action stayed eight weeks.**

HEADNOTE

Allahabad High Court disposed of a writ seeking quash of a distribution-corporation demand and a direction to decide a pending representation, without examining merits, by granting liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005, to be decided after hearing within a time-bound period, with a short stay of coercive recovery.

FACTUAL SUMMARY

Sher Mohammad approached the Allahabad High Court to quash a demand notice dated 10 December 2020 issued by the power distribution corporation and for a mandamus to decide his representation of 27 July 2019. On 20 October 2021 a Division Bench listed the writ as fresh so that corporation counsel could obtain instructions on the pending representation. At the subsequent hearing, counsel for the corporation stated on instructions that the petitioner could file an objection to the demand, which would be decided in a time-bound manner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

writ against demand relegated to Para 6.8 objection

HOLDING

Without expressing any opinion on merits, the writ is disposed of with liberty to the petitioner to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the distribution corporation within four weeks; if so submitted, it shall be decided in accordance with law within the next four weeks after affording a reasonable opportunity of hearing; no coercive action shall be taken on the impugned demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 2

PRINCIPLE TAGS

assessment-6.8-alternate-remedy Court declined to examine the demand on merits and relegated the consumer to a time-bound Para 6.8 objection before the distribution corporation, with interim protection from coercive recovery. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE DEMAND NOTICE DATED 10.12.2020 AND OF THE PENDING REPRESENTATION

Court expressly declined to express any opinion on merits. ¶ 2